25STCV19770 25STCV19770

County: los-angeles

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Case Number: 25STCV19770 Hearing Date: August 7, 2026 Dept: 307

11 TENTATIVE RULING 9:15 a.m., Friday, August 7, 2026

RICHARD

SEQUEIRA v. FORD MOTOR COMPANY, et al. [25STCV19770]

DEFENDANT

FORD MOTOR COMPANY’S MOTION FOR JUDGMENT ON THE PLEADINGS AS TO THE 1ST,

2ND, AND 4TH CAUSES OF ACTION IN THE FIRST AMENDED

COMPLAINT

MEET AND

CONFER: DEFECTIVE Ford’s

counsel states that the parties have not met and conferred telephonically, by

video conference, or in-person in compliance with the requirements of Code

Civ. Proc. § 439, due to Plaintiff’s counsel’s lack of response regarding

availability. (Tehrani Decl., ¶ 6.)

TIMELINE:

Lemon law action

11/7/2017:

Plaintiff¿Richard Sequeira¿(“Plaintiff”) enters¿a warranty contract

with

Defendant¿Ford Motor Company (“Ford”)¿regarding¿a 2018

Ford F-150 (the “Vehicle”), which

was manufactured and/or distributed by Ford.

Plaintiff purchased the Vehicle from¿Ford’s

authorized retail dealership, Defendant Lithia Ford Lincoln of Fresno
("Lithia"). The
Vehicle was equipped with a defective 10-speed, which resulted in nonconformities to the warranty
within the applicable warranty period.

¿¿¿¿

6/30/2025:
Plaintiff files¿the Complaint. The operative First Amended

Complaint
("FAC"), filed 11/20/2025,¿alleges¿causes of action for:¿¿

¿¿

1.
Violation
of Civil Code section 1793.2, subdivision (d)¿¿

2.
Violation
of Civil Code section 1793.2, subdivision (b)¿¿

3.
Violation
of Civil Code section 1793.2, subdivision (a)(3)¿¿

4.
Breach
of the Implied Warranty of Merchantability

5.
Negligent
Repair¿¿

6.
Fraudulent
Inducement-Concealment¿¿

¿¿

2/26/2026: The
Court hears Ford’s demurrer to the FAC, filed on 1/16/2026.

The Court sustains without leave to amend
the demurrer to the third and sixth causes of action, leaving the first,
second, and fourth causes of action as the only remaining claims against Ford.

7/13/2026:¿Ford¿files this¿Motion for Judgment on the Pleadings, which
is

followed by Plaintiff’s Opposition (7/30/2026) and
Ford’s Reply (8/4/2026).

TENTATIVE
RULING: DEFENDANT FORD MOTOR COMPANY’S MOTION FOR JUDGMENT ON THE PLEADINGS AS
TO THE FIRST, SECOND, AND FOURTH CAUSES OF ACTION IN THE FIRST AMENDED
COMPLAINT is GRANTED without leave to amend.

MOTION FOR JUDGMENT ON THE PLEADINGS

Ford
moves for judgment on the pleadings as to the first, second, and fourth causes
of action remaining in the FAC.

A.
1st
and 2nd Causes of Action: Violation of Civ. Code Section 1793.2,
subds. (d) and (b) — GRANTED

Ford
argues that Plaintiff’s first and second causes of action for violations of the
Song-Beverly Act (“SBA”) are time-barred by the six-year statute of repose
under Code of Civil Procedure[1]
section 871.21. Section 871.21, subdivision (b) specifically provides: “an
action covered by Section 871.20 shall not be brought later than six years
after the date of original delivery of the motor vehicle.” (Code Civ. Proc., §
871.21, subd. (b).)

Section

871.20, which¿identifies¿the claims governed by¿Section 871.21, states in relevant part:

(a) [T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.¿¿¿¿

¿¿¿

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.¿¿¿¿

¿¿¿

(Code Civ. Proc., § 871.20.) Here, Plaintiff's first and second causes of action are brought under Civil Code section 1793.2, subdivision (d) and (b), respectively, which are expressly covered by the plain language of section 871.20, subdivision (a). Because these SBA claims are each enumerated under section 871.20, each claim is therefore governed by the six-year statute of repose under section 871.21, subdivision (b).

In this case, Plaintiff alleges he entered into a vehicle warranty contract with Ford on November 7, 2017. (FAC, ¶ 7.) Although Plaintiff does not specifically allege when he purchased the Vehicle, it can reasonably be inferred that the Vehicle was delivered to Plaintiff on or around the date that he received Ford's written warranty. Absent tolling, the six-year deadline to file the instant SBA claims would have expired on November 7, 2023. (See Compl., generally.) Nevertheless, Plaintiff did not file the instant lawsuit until June 30, 2025, over 18 months after the expiration of the statute of repose.

While section 871.21, subdivision (c) does provide some tolling exceptions to section 871.21's statute of repose, the FAC does not allege facts demonstrating that any of these specific tolling exceptions apply here. At most, Plaintiff generally alleges the application of multiple other tolling doctrines, but these boilerplate allegations are largely conclusory and fail to demonstrate the application of the limited tolling doctrines under section 871.21, subdivision (c). (FAC, ¶¶ 43-63.) Plaintiff also fails to identify any specific factual allegations that could be added to a second amended complaint to overcome this defect.

In response, Plaintiff argues that the retroactive application of section 871.21 is impermissible here. “[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application.” (McClung v. Emp. Dev.¿Dep't¿(2004) 34 Cal.4th 467, 475, italics added.) Here, section 871.30, subdivision (a) expressly permits a vehicle manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20, subdivision (a) “with respect to all of its motor vehicles sold in the year 2025 and in all prior years¿by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” (Code Civ. Proc., § 871.30, subd. (a), italics added.)¿Here, once¿Ford¿“opted-in” Plaintiff’s¿Vehicle was subject to these provisions. (Code Civ. Proc., § 871.30.)

Additionally, the relevant statutory framework was approved in September 2024 with an effective date of January 1, 2025, leaving Plaintiff with adequate time (a period of several months) to file a lawsuit before the six-year statute of repose became effective. By September 2024, the five-year Powertrain warranty governing the Vehicle’s transmission defects would have already expired, and thus, Plaintiff would have already had notice of all material facts relevant to his SBA claims nearly two years prior to this potential filing window. (FAC, Exh. A.) As Plaintiff would have had notice of the relevant SBA claims against Ford before the effective date of the section 871.21 statute of repose, Plaintiff cannot reasonably argue that he is unfairly prejudiced by the retroactive application of this statutory framework.

Finally, the Court finds that the application of the statute of repose to Plaintiff’s

claims here, filed well over six years after purchasing the Vehicle,
is consistent with the policies underlying a statute of repose. (Burroughs v. Precision Airmotive Corp. (2000) 78 Cal.App.4th 681, 689 [“A statute of repose is a legal recognition that, after an extended period of time, a product has demonstrated its safety and quality, and that it is not reasonable to hold a manufacturer legally responsible for an accident or injury occurring after that much time has elapsed.”].) Accordingly, the Court finds that Plaintiff’s first and second causes of action are time-barred under section 871.21, subdivision (b).

Therefore,
Ford’s motion for judgment on the pleadings as to the first and second causes of action in the FAC is GRANTED.

B.
4th
Cause of Action: Breach of the Implied Warranty of Merchantability — GRANTED

Ford
argues that Plaintiff’s breach of implied warranty claim is time-barred under the four-year limitations period set forth under Commercial Code section 2725. (See Mexia v. Rinker Boat Co., Inc.¿(2009) 174 Cal.App.4th 1297, 1306 [“the statute of limitations for an action for breach of warranty under the [SBA] is four years…”].) Under this section,¿“[a] cause of action¿accrues¿when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs¿when tender of delivery is made, except that where a warranty¿explicitly¿extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code, § 2725, subd. (2), italics added; see¿Krieger v. Nick Alexander Imports, Inc.¿(1991) 234 Cal.App.3d 205, 211.) “Because¿an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods ….’” (Cardinal Health 301, Inc. v. Tyco Electronics Corp.¿(2008) 169 Cal.App.4th 116, 134, citing Comm. Code § 2725, subd. (2), italics added.) Thus, the statute of limitations for an implied warranty of merchantability claims begins to run upon tender of delivery.

Here, as
discussed above, the FAC suggests that Plaintiff’s vehicle was delivered on or

around November 7, 2017. (FAC, ¶ 7.) The four-year limitations period for his implied warranty claims would have expired four years later, or around November 7, 2021, over three years prior to the filing of this lawsuit. Accordingly, Plaintiff's implied warrant claim is time-barred under the Commercial Code.

Like with
Plaintiff's first and second causes of action, Plaintiff fails to overcome his burden of demonstrating the existence of facts which could reasonably demonstrate that the limitations period should be tolled here. Thus, the Court finds that granting Plaintiff the opportunity to file another amended pleading would be futile here.

Therefore,
Ford's motion for judgment on the pleadings as to the fourth cause of action in the FAC is GRANTED.

Defendant Ford Motor Company to serve notice
of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to counsel on 8/6/26 at 2 p.m.

[1] Hereinafter, unspecified
references to section numbers refer to the Code of Civil Procedure.